

BREYER, J., dissenting

or is clearly established. But, again, assuming that it is, I do not understand why this factor is relevant to the existence of a damages remedy. See *Stanley*, 483 U. S., at 684 (the question of immunity is “analytically distinct” from the question whether a *Bivens* action should lie).

(6) *Risk of disruptive judicial intrusion.* All damages actions risk disrupting to some degree future decisionmaking by members of the Executive or Legislative Branches. Where this Court has authorized *Bivens* actions, it has found that disruption tolerable, and it has explained why disruption is, from a constitutional perspective, desirable. See *Davis*, 442 U. S., at 242 (Unless constitutional rights “are to become merely precatory, . . . litigants who allege that their own constitutional rights have been violated, and who at the same time have no effective means other than the judiciary to enforce these rights, must be able to invoke the existing jurisdiction of the courts for . . . protection”); *Malesko*, 534 U. S., at 70 (“The purpose of *Bivens* is to deter individual federal officers from committing constitutional violations”). Insofar as the Court means this consideration to provide a reason why there should be no *Bivens* action where a Government employee acts in time of security need, I shall discuss the matter next, in Part C.

(7) *Other potential special factors.* Since I am not certain what these other “potential factors” are and, since the Court does not specify their nature, I would not, and the Court cannot, consider them in differentiating this suit from our previous *Bivens* cases or as militating against recognizing a *Bivens* action here.

C

In my view, the Court’s strongest argument is that *Bivens* should not apply to policy-related actions taken in times of national-security need, for example, during war or national-security emergency. As the Court correctly points out, the Constitution grants primary power to protect the Nation’s security to the Executive and Legislative Branches, not to